

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabel Cifarelli	Team: Squad #02	CCRB Case #: 202204903	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 07/24/2022 9:23 AM, Sunday, 07/24/2022 10:07 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/24/2024	Precinct: 67		
Date/Time CV Reported Sun, 07/24/2022 4:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Sun, 07/24/2022 4:11 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Elvis Collado	30692	965002	067 PCT
2. PO Jose Henriquez	25202	963069	067 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Elvis Collado	Discourtesy: Police Officer Elvis Collado spoke discourteously to § 87(2)(b)	A . Substantiated
B . PO Elvis Collado	Off. Language: Police Officer Elvis Collado spoke offensively regarding § 87(2)(b) actual or perceived disability.	B . Substantiated
C . PO Jose Henriquez	Discourtesy: Police Officer Jose Henriquez gestured discourteously toward § 87(2)(b)	C . Unable to Determine
D . PO Elvis Collado	Discourtesy: Police Officer Elvis Collado gestured discourteously toward § 87(2)(b)	D . Unable to Determine
E . PO Jose Henriquez	Abuse: Police Officer Jose Henriquez threatened to remove § 87(2)(b) to the hospital.	E . Substantiated
F . PO Elvis Collado	Abuse: Police Officer Elvis Collado threatened to remove § 87(2)(b) to the hospital.	F . Substantiated
G . PO Jose Henriquez	Discourtesy: Police Officer Jose Henriquez gestured discourteously toward § 87(2)(b)	G . Unable to Determine

Case Summary

On July 24, 2022, § 87(2)(b) filed this complaint via text message to the CCRB.

On July 24, 2022, § 87(2)(b) was at her home at § 87(2)(b) in Brooklyn when she called 911 to report that her roommates had locked her out of her apartment. Police Officer Jose Henriquez and Police Officer Elvis Collado of the 67th Precinct, responded at 9:23 a.m. and told her to call a locksmith. Police Officer Collado allegedly said to § 87(2)(b) “You’re a fool, call a locksmith,” and, as he was leaving, used the word “loca” in reference to § 87(2)(b) (Allegation A: Discourtesy – Word, substantiated; Allegation B: Offensive Language – Disability, substantiated). Police Officer Collado and Police Officer Henriquez then allegedly stuck their tongues out at § 87(2)(b) (Allegations C and D: Discourtesy – Gesture, Unable to Determine). § 87(2)(b) made another call to 911 shortly after, and at 10:07 a.m., Police Officer Henriquez and Police Officer Collado returned. Both Police Officer Henriquez and Police Officer Collado stated that if § 87(2)(b) kept calling 911, they would take her to the hospital (Allegations E and F: Abuse of Authority – Threat re: removal to the hospital, substantiated). The officers returned to their patrol vehicle, and as they were driving away, Police Officer Henriquez allegedly raised his middle finger toward § 87(2)(b) (Allegation G: Discourtesy – Gesture, Unable to Determine).

No arrests or summonses resulted from this incident.

The investigation obtained four body-worn camera (BWC) videos related to this incident, recorded by Police Officer Henriquez and Police Officer Collado. The videos are in IA # 45, 98-101 (BR 01-05) and are summarized in IA # 56 (BR 06).

This case is being closed within 90 days of the Statute of Limitations, which will pass on January 24, 2023, due to the fact that § 87(2)(b) has been involved in multiple complaints in which Police Officer Henriquez was a subject and officer interviews in this case were delayed until such time that Police Officer Henriquez could be interviewed for all these complaints concurrently.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Elvis Collado spoke discourteously to § 87(2)(b).

Allegation (B) Offensive Language: Police Officer Elvis Collado spoke offensively regarding § 87(2)(b) actual or perceived disability.

Allegation (C) Discourtesy: Police Officer Jose Henriquez gestured discourteously toward § 87(2)(b).

Allegation (D) Discourtesy: Police Officer Elvis Collado gestured discourteously toward § 87(2)(b).

§ 87(2)(b) was interviewed by the CCRB on August 10, 2022 (BR 07). Police Officer Collado was interviewed on July 7, 2023 (BR 08) and Police Officer Henriquez was interviewed on August 18, 2023 (BR 09).

§ 87(2)(b) testified she called 911 from outside her building after realizing her roommates had locked her out. Approximately 15-20 minutes later, Police Officer Henriquez and Police Officer Collado arrived in a marked patrol car. § 87(2)(b) attempted to explain her situation, and Police Officer Henriquez told her that there was nothing they could do for her. He stated that she should call a locksmith. Police Officer Collado then stated, “You’re a fool, call a locksmith.” The two officers started to get back into their car. § 87(2)(b) stated that they were both fools, that they could leave, and she would file complaints with IAB and the CCRB. Police Officer Henriquez and Police Officer Collado both stuck their tongues out at § 87(2)(b) and started laughing as they drove away.

Police Officer Collado’s first BWC video (BR 02) beginning at 01:00 into the video shows Police Officer Collado and Police Officer Henriquez exiting the police vehicle and approaching § 87(2)(b).

§ 87(2)(b) residence. § 87(2)(b) is standing at the front door. She appears to be on the phone, and she states, “Hi, this is § 87(2)(b) I call 911 for the cops to come here because [inaudible] the apartment and they jammed the lock and I cannot get in.” Police Officer Henriquez tells her that she has to call a locksmith. § 87(2)(b) states, “I did call 911, and these two fucks show up here and decide they’re not doing anything about—” and Police Officer Collado tells § 87(2)(b) that she is being disrespectful. Police Officer Henriquez asks whether § 87(2)(b) wants to talk to him, and she says, “No.” He continues to ask if § 87(2)(b) wants to get off the phone and talk to them, and she does not respond. Police Officer Henriquez tells her that they will come back if she needs them. At the 03:15 mark, Police Officer Collado states, “All right, we’ll come back if you need us, okay?” He then states, at the same volume, in Spanish, “[inaudible, possibly ‘ella’] loca,” and walks toward the police vehicle. Police Officer Henriquez stays on the sidewalk for a few seconds, walks to the middle of the street and, at the 04:02 mark, states, “You want to talk to us?” in the direction of § 87(2)(b) door. Neither Police Officer Collado’s first BWC video nor Police Officer Henriquez’s first BWC video (**BR 03**) capture either officer sticking their tongues out at § 87(2)(b) though the officers’ faces are not consistently visible throughout. At no point in either video does Police Officer Collado call § 87(2)(b) a “fool.”

Police Officer Collado testified that he speaks Spanish. He did not initially recall saying anything like, “*ella loca*,” but he may have said something like, “this is crazy.” Police Officer Collado believed that “*ella loca*” could mean, “*está loco*,” meaning, “this is crazy,” referring to the situation. He also added that sometimes in Spanish, one can call their friends, “*loco*,” meaning something akin to “bro.” When presented with the portion of his own BWC footage that captures the statement, he stated he could hear himself in the footage stating, “This is crazy.” He did not recall whether he was referring to § 87(2)(b) stating, “Like, I can’t really remember, of being, like, of saying that referring to her, but ... I usually say that word a lot, and I’m like, ‘all right, this is crazy, let’s just walk away from it.’” When asked to clarify the statement’s meaning, he stated, “Because of the situation, of what’s going on, it’s, she’s just not answering our questions ... I hear myself saying, ‘It’s crazy,’ so I’m just telling him [Police Officer Henriquez] like, ‘Let’s go, like, it’s crazy,’ just walking away.” When asked what he meant by, “crazy,” he said, “well, the situation is just... it’s crazy.” Police Officer Collado acknowledged that in the video he stated, “*loca*,” the feminine form of the word, as opposed to, “*loco*,” the masculine form that he used when giving examples of other ways he uses the word. He did not recall why he used the feminine form of the word (As discussed further below, Police Officer Collado then went on to threaten to remove § 87(2)(b) to the hospital in part because she did not “seem right.”).

Police Officer Henriquez testified that to his knowledge, neither he nor Police Officer Collado stuck their tongues out at § 87(2)(b). Police Officer Collado denied sticking his tongue out at § 87(2)(b) and he did not recall seeing Police Officer Henriquez do so.

Collins Spanish to English Dictionary defines “*loco*” or “*loca*” as an adjective meaning “mad” or “crazy” (**BR 10**). It can also be used informally as a noun meaning “lunatic” or “madman/madwoman.”

NYPD Patrol Guide Procedure 200-02 (**BR 11**) states that the NYPD is committed to treating citizens with compassion, courtesy, professionalism, and respect. Officers are expected to render services with courtesy and civility.

NYPD Administrative Guide 304-06 (**BR 12**) states that officers must not use discourteous or disrespectful remarks regarding another person’s disability.

Per DAO-DCT Case Number 2015-15012 (**BR 13**), discourteous language may be permissible when an officer is speaking in the context of a dynamic situation over which he is still attempting to gain control. However, discourteous statements are prohibited when they serve no legitimate purpose but to belittle the civilian.

While the BWC footage does not corroborate § 87(2)(b) allegation that Police Officer Collado referred to her as “a fool,” it does show him using the word, “*loca*,” commonly

known to mean “crazy” in Spanish, while speaking to § 87(2)(b) § 87(2)(g)

it is recommended that **Allegations A and B** be **substantiated**.

Although the BWC footage does not capture the officers sticking their tongues out at § 87(2)(b) as alleged, their faces are not clearly visible in the relevant portions of footage. § 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **Unable to Determine**.

Allegation (E) Abuse of Authority: Police Officer Jose Henriquez threatened to remove § 87(2)(b) to the hospital.

Allegation (F) Abuse of Authority: Police Officer Elvis Collado threatened to remove § 87(2)(b) to the hospital.

Allegation (G) Discourtesy: Police Officer Jose Henriquez gestured discourteously toward § 87(2)(b)

§ 87(2)(b) testified that approximately five to ten minutes later, she called 911 again and told the operator that the two officers that responded did not help her. Approximately 10 minutes later, Police Officer Henriquez and Police Officer Collado returned. § 87(2)(b) told the officers that she was not going to waste her time with them if they were going to continue to be disrespectful. Police Officer Henriquez stated that if § 87(2)(b) did not “behave,” then he would call an ambulance and send her back to the psychiatric ward. § 87(2)(b) believed this was based entirely on previous experiences in which Police Officer Henriquez removed her to the hospital for psychiatric treatment (addressed in previous CCRB complaints). § 87(2)(b) remained calm throughout the interaction. Police Officer Henriquez repeated that there was nothing he could do for her, continued to laugh, and lifted his middle finger toward § 87(2)(b). Both officers got in the patrol car and drove away.

Police Officer Henriquez’s second BWC video (**BR 05**), beginning at 01:02 into the video, shows Police Officer Henriquez exiting his vehicle and stating, “Ma'am, listen. This is the third time you've called. If we get called here again, we're gonna call you an ambulance, you're gonna go back to the hospital.” § 87(2)(b) states either, “You're such a fucking ass,” or, “Shut your fucking ass.” He states, “All right? I'm letting you know that. There's other people calling for important things.” § 87(2)(b) states that she does not want these officers to respond. Police Officer Collado states, “Well, we're gonna come, if you gonna keep calling, we gonna keep coming, but we're gonna send you to the hospital, 'cause you seem out of your head. You got the things from § 87(2)(b) there, right? You was in the hospital?” Police Officer Collado states that § 87(2)(b) is being disrespectful and other people need the police. Police Officer Henriquez states, “You call again, you’re gonna go to the hospital.” § 87(2)(b) walks away and states, “Go about your business.” The officers walk away. Police Officer Henriquez states, “Just letting you know. You're gonna go right back to the psych ward.” The officers continue their back-and-forth with § 87(2)(b) as they return to their vehicle. Police Officer Henriquez deactivates his BWC while the car is still stationary. Neither Police Officer Henriquez’s second BWC video nor

Police Officer Collado's second BWC video (**BR 04**) capture Police Officer Henriquez raising his middle finger at § 87(2)(b) though both videos deactivate before the officers have driven away, and neither video consistently shows Police Officer Henriquez's hands.

Police Officer Henriquez testified that he explained to § 87(2)(b) that she could not keep calling 911, because she was wasting resources that could be used on "something more serious." Police Officer Henriquez believed that, because of § 87(2)(b) prior history as an EDP, and because she called 911 a second time, she may have been experiencing a mental health episode. He explained to § 87(2)(b) that, if she called 911 a third time that day, Police Officer Henriquez would have her evaluated by EMS for her safety and the safety of others. He articulated this to her in case § 87(2)(b) was making these calls "just for giggles;" if this was the case, he believed that § 87(2)(b) would stop calling 911 if she did not want to go to the hospital. Other than her multiple calls to 911, Police Officer Henriquez did not observe any other reason why § 87(2)(b) would have needed medical evaluation. At the time of the second call, § 87(2)(b) did not appear to be a threat to herself or others; however, Police Officer Henriquez believed that, if she called a third time, it was likely due to a mental health episode, which "could" have made her a threat to herself and/or others. Police Officer Henriquez was unable to explain why a third call to 911 would have indicated that § 87(2)(b) was experiencing a mental health episode, other than the fact that "it's not common for someone to call [911] for the same thing three times." He believed that there was "no question" that she needed psychiatric evaluation, and he specified to § 87(2)(b) that she would be removed to the hospital because he believed that EMS would have agreed with him if they were called. Police Officer Henriquez did not recall ever raising his middle finger toward § 87(2)(b).

Police Officer Collado testified that he told § 87(2)(b) that she was going to the hospital if she kept calling 911 because of the folder from § 87(2)(b) Hospital, because he typically deals with emotionally disturbed persons in that area, and because she did not "seem right," in that she kept calling 911 and cursing at the officers, saying she did not want to see them. He did not know whether she needed medical attention. Police Officer Collado also informed § 87(2)(b) that other people needed the police. § 87(2)(b) seemed emotionally disturbed because she was upset and cursing, and because of the folder she was holding. When asked what he believed § 87(2)(b) needed medical attention for, he stated, "Well, she keeps calling 911 and not really telling us what's going on." She did not appear dangerous. He did not know whether she posed a risk to herself or anyone else because he knew she was upset but he did not know why or what was going through her mind. At the moment, there was nothing specific indicating that she posed a risk to herself or others. Police Officer Collado was asked why she would be taken to the hospital only if she continued calling 911, and he stated, "Well, if a person just keeps calling 911, 911, for no reason, it just doesn't seem normal for a person to just keep calling. I mean, I don't know what would have happened if she calls again, but it didn't happen, she didn't call again."

NYPD Patrol Guide Procedure 221-13 (BR 14) states that when a uniformed member of service reasonably believes that a person who is apparently mentally ill or emotionally disturbed must be taken into protective custody because the person is conducting himself in a manner likely to result in serious injury to himself or others, members of service must have the emotionally disturbed person (EDP) removed to the hospital in an ambulance.

§ 87(2)(g)

§ 87(2)(g) it is undisputed that § 87(2)(g) did not pose any danger to herself or others at the time of this incident. § 87(2)(g)

It is therefore recommended that **Allegations E and F** be **substantiated**.

It is therefore recommended that **Allegation G** be closed as **Unable to Determine**.

[illegible]

- CCRB Case # 202204903

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§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of December 13, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR 17**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegation of Racial Profiling/Bias-Based Policing.

Squad: 2

Investigator: Isabel Cifarelli SI Isabel Cifarelli 11/21/2023
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Opoku-Agyemang
Signature Print Title & Name Date